

26PR00680 Estate of Luis Fernando Mederios

County: sonoma

Division: Probate

Hearing date: 2026-07-17

Motion: Spousal Property Petition

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Estate of Luis Fernando Mederios

26PR00680

Spousal Property Petition

Tentative Ruling: NO APPEARANCES REQUIRED. This matter is CONTINUED to September 4, 2026, at 9:30 a.m. in Department 63 to allow Petitioner time to file and serve a verified Supplement in support of the allegation that the Harley Davidson motorcycle is community property. While not all the documents attached to the petition are legible, the DMV records seem to indicate the motorcycle was purchase by the decedent before the date of the parties' marriage. The Supplement should also disclose all relevant facts about the marital dissolution involving decedent and address the effect on the present claim, including citation to supporting legal authorities in support of any relief sought. The Court takes judicial notice of case SFL093791 on its own motion. It notes that Petitioner filed a sworn statement on July 28, 2023, seeking a default, and indicating that "there are no issues of division of community property." This is consistent with Petitioner's verified petition that states there was no community property to be divided as a result of the dissolution. See Petition filed June 6, 2023.

Petitioner shall also file and serve a Declaration of Diligent Search for decedent's daughter, Stevi Cuda. If Petitioner can locate Stevi Cuda, a Notice of Hearing for the continued hearing, and all other papers filed by petitioner in this matter, shall be served on Stevi Cuda at least 15 days prior to the next hearing. Any proof of service and Supplement must be filed no later than seven days before the hearing.

The Court is also aware that an objection to the petition was filed on July 15, 2026. As this is now a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2.F.2 and file statements of issues in compliance with local rule 6.2.F.3 at least seven (7) days in advance of the continued hearing.